

# HOUSE . . . . . No. 3938

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## The Commonwealth of Massachusetts

PRESENTED BY:

*Amy Mah Sangiolo*

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act pertaining to regional resilience and flood protection entities.

PETITION OF:

| NAME:                          | DISTRICT/ADDRESS:     | DATE ADDED:      |
|--------------------------------|-----------------------|------------------|
| <i>Amy Mah Sangiolo</i>        | <i>11th Middlesex</i> | <i>1/17/2025</i> |
| <i>James C. Arena-DeRosa</i>   | <i>8th Middlesex</i>  | <i>3/4/2025</i>  |
| <i>Marjorie C. Decker</i>      | <i>25th Middlesex</i> | <i>3/14/2025</i> |
| <i>Carmin Lawrence Gentile</i> | <i>13th Middlesex</i> | <i>3/4/2025</i>  |
| <i>Patrick Joseph Kearney</i>  | <i>4th Plymouth</i>   | <i>1/28/2025</i> |

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By Representative Sangiolo of Newton, a petition (subject to Joint Rule 9) of Amy Mah Sangiolo and others for legislation to establish the Massachusetts Flood Management and Mitigation Authority to coordinate flood management and mitigation efforts. Environment and Natural Resources.

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act pertaining to regional resilience and flood protection entities.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           Chapter 21A of the General Laws, as printed in the 2022 Edition, is hereby amended by  
2   inserting after Section 28 the following:

3           Section 29. There is hereby created and placed within the office of environmental affairs  
4   a body politic and corporate and a public instrumentality to be known as the Massachusetts  
5   Flood Management and Mitigation Authority, referred to in this section as the Authority, which  
6   shall serve to coordinate flood management and mitigation efforts by local governments, tribal  
7   authorities, regional planning bodies, watershed organizations and environmental nonprofits,  
8   philanthropic organizations, and other entities.

9           (a) The Authority shall be an independent public authority not subject to the supervision  
10   or control of the executive office of environmental affairs or of any other executive office,

department, commission, board, bureau, agency or political subdivision of the commonwealth except to the extent and in the manner provided in this act.

(b) The Authority shall develop rules and regulations to protect the commonwealth's natural resources, infrastructure, and the property of its residents.

(c) The Authority shall, with respect to itself and the entities it regulates prioritize the conservation of the natural resources of the commonwealth and center equity and environmental justice in all planning, design, construction, operation, maintenance and financial activities.

(d) The Authority shall be empowered to plan, design, build, operate, and fund flood control systems

(e) The Authority shall be empowered to borrow money and issue bonds and to pledge or assign or create security interests in funds or revenues of the Authority to pay or secure such bonds

(f) The Authority shall submit a report annually to the clerk of the house of representatives, the clerk of the senate, and the joint committee on environment on natural resources informing them on how the commonwealth and affiliated agencies are mitigating the impact of flooding